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TITLE 26. HEALTH AND HUMAN SERVICES

PART 1. HEALTH AND HUMAN SERVICES COMMISSION

CHAPTER 558. LICENSING STANDARDS FOR HOME AND COMMUNITY SUPPORT SERVICES AGENCIES

SUBCHAPTER C. MINIMUM STANDARDS FOR ALL HOME AND COMMUNITY SUPPORT SERVICES AGENCIES

DIVISION 4. PROVISION AND COORDINATION OF TREATMENT SERVICES

§558.295. Client Transfer or Discharge Notification Requirements.

(a) Except as provided in subsection (e) of this section, an agency intending to transfer or discharge a client must:

(1) provide written notification to the client or the client's parent, family, spouse, significant other, or legal representative; and

(2) notify the client's attending physician or practitioner if he is involved in the agency's care of the client.

(b) An agency must ensure delivery of the written notification no later than five days before the date on which the client will be transferred or discharged.

(c) The agency must deliver the required notice by hand or by mail.

(d) If the agency delivers the written notice by mail:

(1) the notice must be mailed at least eight working days before the date of transfer or discharge; and

(2) the agency must speak with the client by telephone or in person to ensure the client's knowledge of the transfer or discharge, at least five days before the date of transfer or discharge.

(e) An agency may transfer or discharge a client without prior notice required by subsection (b) of this section:

- (1) upon the client's request;
 - (2) if the client's medical needs require transfer, such as a medical emergency;
 - (3) in the event of a disaster when the client's health and safety is at risk, in accordance with provisions of §558.256 of this subchapter (relating to Emergency Preparedness Planning and Implementation);
 - (4) for the protection of staff or a client after the agency has made a documented reasonable effort to notify the client, the client's family and physician, and appropriate state or local authorities, of the agency's concerns for staff or client safety, and in accordance with agency policy;
 - (5) according to physician orders; or
 - (6) if the client fails to pay for services, except as prohibited by federal law.
- (f) An agency must keep the following in the client's file:
- (1) a copy of the written notification provided to the client or the client's parent, family, spouse, significant other, or legal representative;
 - (2) documentation of the personal contact with the client, if the required notice was delivered by mail; and
 - (3) documentation that the client's attending physician or practitioner was notified of the date of discharge.

Source Note: The provisions of this §558.295 adopted to be effective February 1, 2002, 26 TexReg 9159; amended to be effective December 1, 2006, 31 TexReg 7368; amended to be effective May 1, 2008, 33 TexReg 1136; transferred effective May 1, 2019, as published in the April 12, 2019, issue of the Texas Register, 44 TexReg 1893; amended to be effective April 25, 2021, 46 TexReg 2427.